

PANEL 01/12 - CONSTITUTIONAL LOCATION, SCOPE AND CATEGORIES

PART XIV: SERVICES UNDER THE UNION AND THE STATES

Arts 308-314 = service relationship

Topic 41 owns the first block

Arts 315-323 = PSCs

Topic 28 owns the second

Article 308: "State" excludes the former State of Jammu and Kashmir in the printed text; read that text with the 2019 territorial change.

SERVICE MAP

AIS: IAS + IPS + Indian Forest Service -> common Union-State services

Central civil services/posts -> Union law/rules

State civil services/posts -> State law/rules

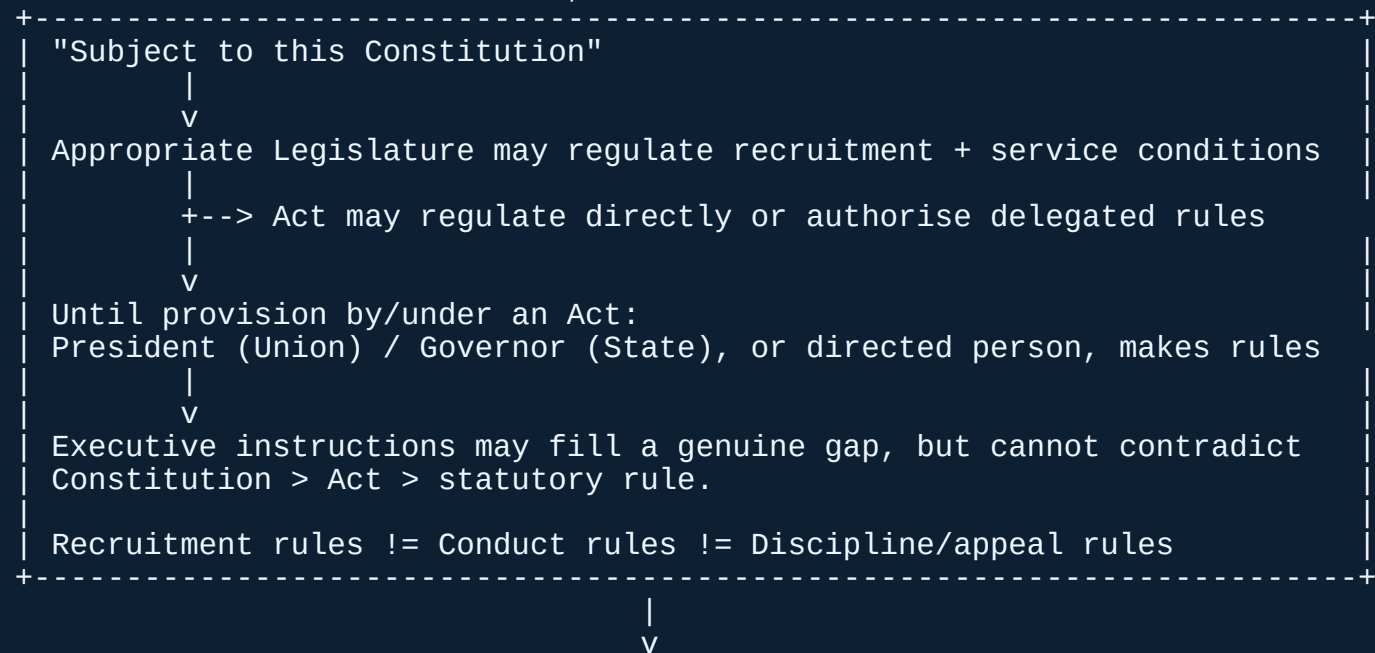
Defence services/posts -> Art 310, but uniformed personnel lack 311

Constitutional offices -> their special tenure/removal code controls

PSU/statutory/contract staff -> Article 311 is not automatic

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PANEL 02/12 - ARTICLE 309: LAW, RULES AND INSTRUCTIONS



PANEL 03/12 - EQUALITY, RESERVATION AND PSC CROSS-REFERENCE

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| Arts 14 + 16(1): non-arbitrariness and equality of opportunity |
| Art 16(2): specified prohibited grounds |
| Arts 16(3)-(6): bounded constitutional authorisations |
| residence law by Parliament | backward-class reservation |
| promotion/consequential-seniority provisions | religious office | EWS |
| Art 335: SC/ST claims + efficiency; proviso permits stated relaxation |
|
| Indra Sawhney -> Art 16(4) enabling; no promotion reservation under it |
| Nagaraj -> enabling amendments upheld with constitutional conditions |
| Jarnail Singh -> no SC/ST backwardness data; inadequacy/efficiency stay |
| Mukesh Kumar -> no fundamental right to reservation/promotion quota |
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| Art 320 PSC consultation: constitutionally important, generally |
| advisory unless governing law gives a different consequence. |
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PANEL 04/12 - ARTICLE 310: PLEASURE, NOT PERSONAL WHIM

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Except as expressly provided by the Constitution:	
Union civil/AIS/defence tenure -> pleasure of President	
State civil tenure -> pleasure of Governor	
Shamsher Singh: formal head ordinarily acts on ministerial aid/advice	
Constitutional fences: Arts 14, 16, 311, special removal provisions,	
governing statute/rules, mala-fide review and constitutional remedies	
Art 310(2): narrow contract for specially qualified outsider, fixed	
term, with compensation for qualifying early non-misconduct termination	
B.P. Singhal (bounded analogy): even a pleasure tenure expressly used	
for Governors is not an arbitrary, capricious removal licence.	
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PANEL 05/12 - ARTICLE 311: WHO, WHAT AND WHICH PENALTIES

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| Protected persons: Union civil service + AIS + State civil service + |
| holder of a civil post under Union/State                             |
| Not automatic: armed-forces member, PSU employee, contractor,       |
| constitutional office with a separate removal code                   |
|                                                                       |
| Protected consequences: DISMISSAL | REMOVAL | REDUCTION IN RANK      |
| Dismissal: ordinarily graver future-employment consequence under rules |
| Removal: ends service without that ordinary disqualification         |
| Reduction: penal lowering in rank/status; not every bona fide reversion |
|                                                                       |
| 311(1): dismissing/removing authority cannot be subordinate to the   |
| appointing authority; identical individual is unnecessary.           |
| Article 311 = procedural protection, not job immunity.               |
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PANEL 06/12 - ARTICLE 311(2): REGULAR INQUIRY AND 42ND AMENDMENT

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| Charge memorandum + definite imputations |
|   -> reply and document/witness access   |
|   -> inquiry by competent officer         |
|   -> evidence, cross-examination where applicable, defence |
|   -> findings based on record             |
|   -> inquiry report supplied where law requires |
|   -> disciplinary authority's reasoned penalty |
|                                             |
| Khem Chand: meaningful knowledge of case + defence opportunity |
| 42nd Amendment: removed separate constitutional opportunity to |
| represent on proposed penalty after inquiry. It did NOT remove inquiry, |
| hearing on charges, report fairness, reasoned decision or review. |
| ECIL v B. Karunakar: report-supply breach tested through prejudice. |
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PANEL 07/12 - THREE EXCEPTIONS AND JUDICIAL REVIEW

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| Second proviso to Article 311(2):
| (a) conduct leading to conviction on a criminal charge
| (b) competent authority records written reasons that inquiry is not
|     reasonably practicable
| (c) President/Governor satisfied inquiry is not expedient in the
|     interest of the security of the State
|
| These gateways dispense with the regular inquiry, not competence,
| relevant material, good faith, proportionality or review.
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| Article 311(3): authority's practicability decision is final, but
| Tulsiram Patel preserves review of existence, relevance and bona fides.
| Convenience != impracticability; public interest != State security.
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PANEL 08/12 - PUNISHMENT TEST AND CASE-LAW SPINE

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| Parshotam Lal Dhingra: look to substance, right to post/rank and penal |
| consequences; temporary/probation status does not end the inquiry.    |
| Shamsher Singh: innocuous form cannot hide a misconduct foundation.    |
| Motive alone may explain action; misconduct as foundation attracts 311. |
|                                 |
| Khem Chand -> reasonable opportunity                                   |
| Tulsiram Patel -> exact provisos and review                           |
| T.S.R. Subramanian -> written directions, Civil Services Boards, tenure |
| B.P. Singhal -> bounded anti-arbitrariness point for pleasure tenure    |
|                                 |
| Court asks legality, evidence nexus, natural justice and proportionality;|
| it is not a routine departmental appellate authority.                  |
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PANEL 09/12 - CONDUCT, SUSPENSION, DISCIPLINE AND CRIMINAL PROCESS

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| Conduct rules define service obligations: integrity, impartiality, |
| political neutrality, confidentiality and lawful obedience. |
| Suspension pending inquiry/investigation is ordinarily interim, not a |
| penalty; it remains rule-bound, reviewable and linked to subsistence pay. |
| |
| CCS (CCA) illustrations only - never universalise: |
| Rule 10 suspension | Rule 11 penalties | Rule 14 major inquiry |
| Rule 16 minor-penalty procedure |
| Minor examples: censure, recovery, withholding promotion/increments |
| Major examples: reduction, compulsory retirement, removal, dismissal |
| |
| Departmental proof: preponderance; criminal proof: beyond reasonable |
| doubt. Tracks may coexist; acquittal does not mechanically erase |
| discipline, and conviction does not mechanically fix one penalty. |
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PANEL 10/12 - ARTICLE 312 AND THE ALL-INDIA SERVICES

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| Rajya Sabha declares necessity/expediency in national interest |
| support: not less than 2/3 of members PRESENT AND VOTING      |
|   -> Parliament may by law create one or more AIS             |
|   -> service is common to Union and States                     |
|                                                                    |
| Article 312(2): IAS and IPS deemed created under clause (1)    |
| Indian Forest Service: created under AIS Act framework; constituted 1966 |
| Existing AIS = IAS + IPS + Indian Forest Service; IFS is not an AIS |
|                                                                    |
| AIJS: constitutionally enabled, not established; no post below district |
| judge; creating law may adjust Part VI Ch VI without Art 368 treatment. |
| Federal design = Union rules/common standards + State cadre deployment. |
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PANEL 11/12 - ARTICLES 312A, 313, 314 AND SERVICE REFORM

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| 312A (28th Amendment, 1972): Parliament may vary/revoke specified |
| service conditions of certain former Secretary-of-State recruits;   |
| express protection remains for listed high constitutional offices.    |
| 313: consistent pre-Constitution service law continues until replaced. |
| 314: former guarantee repealed by the 28th Amendment.                |
|                               |
| Reform compact: neutral advice + lawful implementation + recorded reasons|
| Stable tenure/Civil Services Boards -> resist arbitrary transfer      |
| Lateral entry -> expertise, but transparent Article 16-compliant design |
| Generalist + specialist -> coordination plus domain depth              |
| Mission Karmayogi -> role/competency capacity, not a legal substitute  |
| Performance appraisal -> outcomes + teamwork + integrity + appeal      |
| Whistleblower protection -> lawful channels, confidentiality, anti-reprisal|
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PANEL 12/12 - FINAL ANSWER ROUTE AND QUALIFIED CONCLUSION

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| PRELIMS CLOSE-OPTION CHECKS |
| law vs rule vs instruction | pleasure vs whim | dismissal vs removal |
| inquiry vs second penalty notice | conviction vs automatic dismissal |
| impracticability vs inconvenience | State security vs public interest |
| AIS vs Central service | posting expectation vs enforceable legal right |
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| MAINS PARAGRAPH |
| Claim -> named Article/case/rule -> institutional effect -> qualification |
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| CORE VERDICT |
| Public-service law seeks neutral competence under democratic control: |
| Article 309 legalises personnel administration, Article 310 preserves |
| responsibility, Article 311 checks arbitrary punishment, and Article 312 |
| integrates federal capacity. Protection secures lawful candour, not |
| immunity; reform must join capability, equality, tenure and accountability. |
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